The Bureaucracy

POLS 2311: Government of the United States

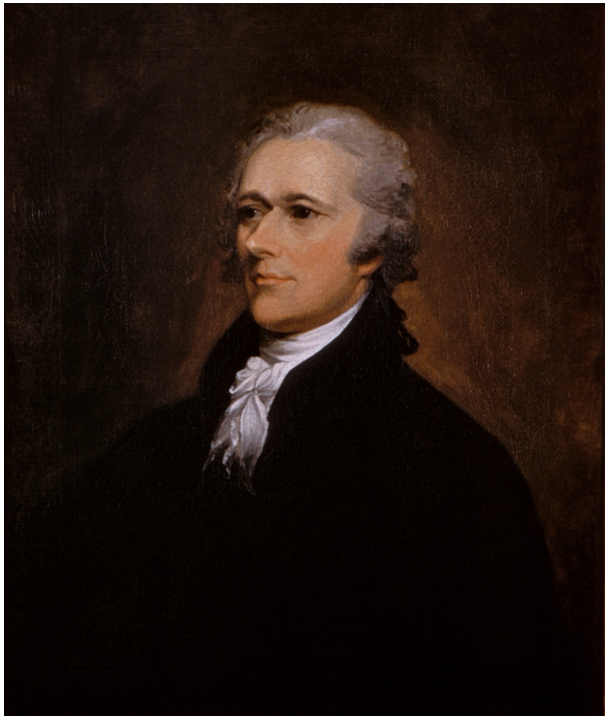
Agenda

- Politics and Administration
- Bureaucracy and Government Agencies
- History of the Federal Bureaucracy
- Political Control

Public Administration

Federalist 72, Hamilton

The administration of government, in its largest sense, comprehends all the operations of the body politics, whether legislative, executive, or judiciary; but in its most usual and perhaps in its most precise signification, it is limited to executive details, and falls



The Politics-Administration Dichotomy

Woodrow Wilson: ***administrative questions are not political questions***

Politics

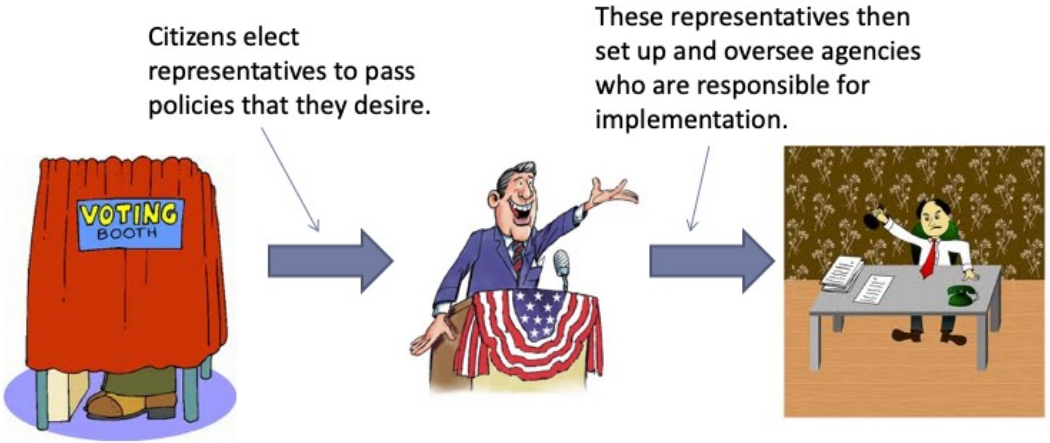
- Decides what actions should be taken through debate
- ***Values based***

Administration

- Implements policies made by elected officials
- ***Expertise based***

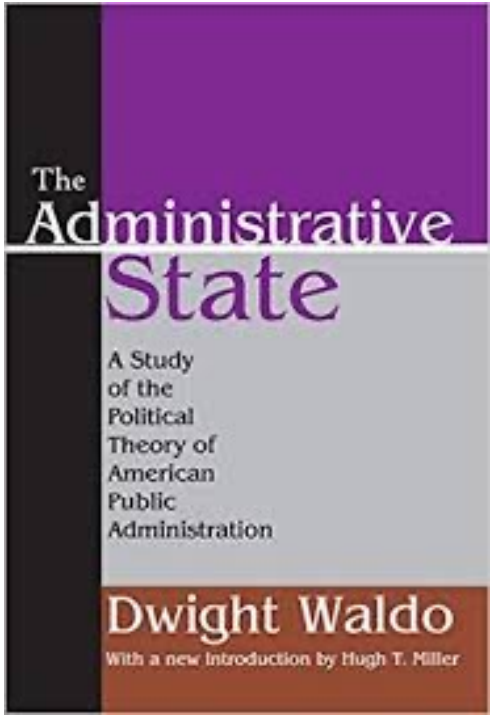
Democracy and Delegation

The people → Elected officials → Government Agencies



The Administrative State

- ***The various agencies of the executive branch as well they the various rules and regulations that those agencies have developed***
- Americans tend to like the effects of individual regulations and dislike the effects of regulations collectively



Distinctiveness of the American Bureaucracy

- **Power is shared**: functions are divided among federal, state, and local agencies rather than concentrated in a single national bureaucracy
- **Proxy government**: state governments, local governments, and private groups receive federal funding to administer federal programs
  - Much of what functions as “federal” policy delivery is actually carried out by non-federal actors implementing federal rules and funding

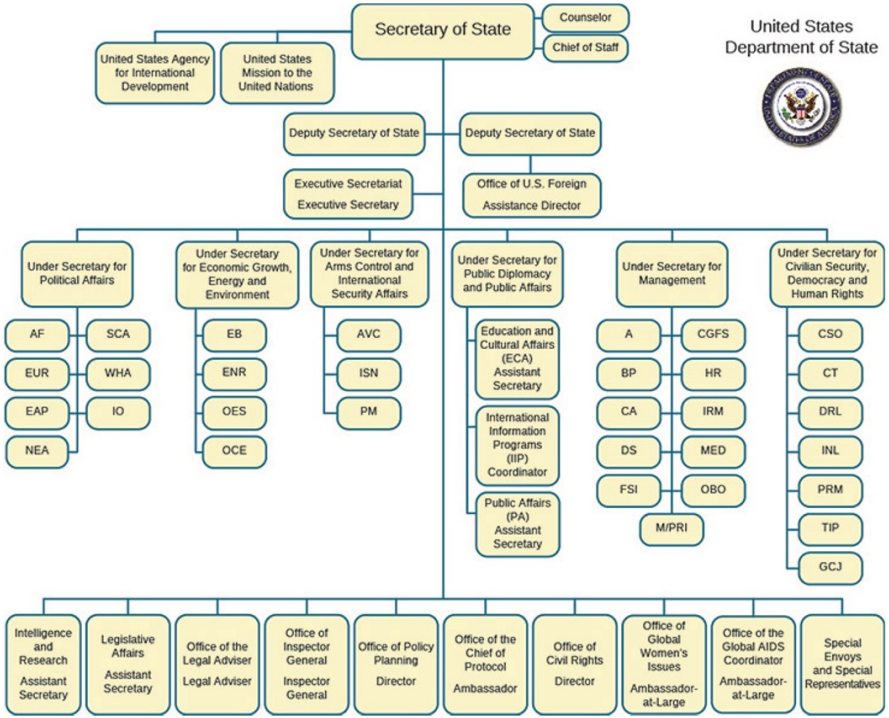
THE BUREAUCRACY

WHAT COMES TO MIND WHEN YOU HEAR THE TERM *BUREAUCRACY*?

Red Tape


RED TAPE
RED TAPE
RED TAPE
RED TAPE
RED TAPE
RED TAPE
PATRIOTPOST.US

Hierarchy


Secretary of State
Counselor
Chief of Staff
United States Agency for International Development
United States Mission to the United Nations
United States Department of State
Deputy Secretary of State
Deputy Secretary of State
Executive Secretariat
Executive Secretary
Office of U.S. Foreign Assistance Director
Under Secretary for Political Affairs
AF
SCA
EUR
WHA
EAP
IO
NEA
Under Secretary for Economic Growth, Energy and Environment
EB
ENR
OES
OCE
Under Secretary for Arms Control and International Security Affairs
AVC
ISN
PM
Under Secretary for Public Diplomacy and Public Affairs
Education and Cultural Affairs (ECA) Assistant Secretary
International Information Programs (IIP) Coordinator
Public Affairs (PA) Assistant Secretary
Under Secretary for Management
A
CGFS
BP
HR
CA
IRM
DS
MED
FSI
OBO
M/PRI
Under Secretary for Civilian Security, Democracy and Human Rights
CSO
CT
DRL
INL
PRM
TIP
GCJ
Intelligence and Research Assistant Secretary
Legislative Affairs Assistant Secretary
Office of the Legal Adviser Legal Adviser
Office of Inspector General Inspector General
Office of Policy Planning Director
Office of the Chief of Protocol Ambassador
Office of Civil Rights Director
Office of Global Women's Issues Ambassador-at-Large
Office of the Global AIDS Coordinator Ambassador-at-Large
Special Envoys and Special Representatives

The Federal Bureaucracy

The many arms of federal bureaucracy are often considered the fourth branch of government. This administrative structure, staffed by nonelected workers, enables the government to function as needed by citizens

Bureaucracy and Bureaucrat

- **Bureaucracy**: *An administrative group of non-elected officials charged with carrying out functions connected to a series of policies and programs*
  - A way to organize a large number of people toward a common purpose
- **Bureaucrat**: *An individual who works in the bureaucracy and fills the necessary and instrumental roles in every area of government*

Bureaucracy

Max Weber

- ***Characteristics***
  - Hierarchy
  - Fixed rules
  - Impersonal relationships
  - Adherence to procedures
  - Highly specialized division of labor

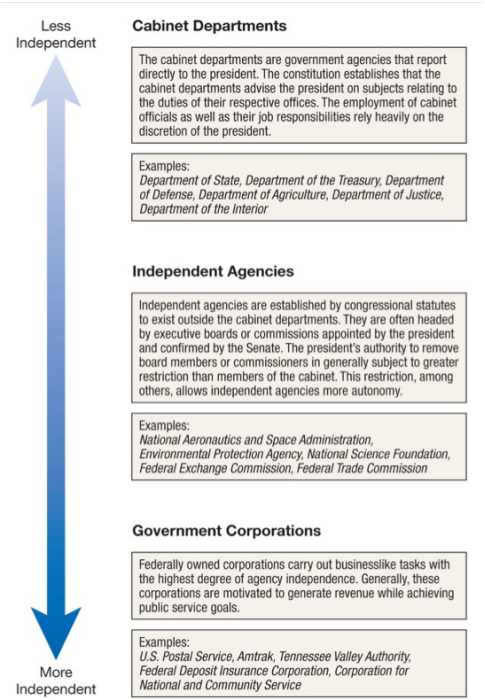


Discretionary Authority

- **Discretionary Authority**: *The extent to which appointed bureaucrats can choose courses of action and make policies not spelled out in advance by laws*
- Legislatures cannot anticipate every contingency when writing statutes
- Discretion allows agencies to adapt policy using expertise — but raises questions about democratic accountability

Federal Bureaucracy

- ***Agencies in the Executive branch are one of three types***:
  - Cabinet department
  - Independent agency
  - Government corporation



Cabinet Departments

- Perform essential government functions
  - State, Treasury, War (Defense)
- Reflect needs of a growing nation
  - Justice, Interior
- Clientele
  - Agriculture, Commerce, and Labor
  - Health and Human Services, Education, Veterans Affairs
- National priorities
  - Housing and Urban Development, Energy, Homeland Security

Independent Agencies

- e.g., NASA, EPA, FTC
- New ways to approach problems
- Avoid clientele pressure
- *Independence from the president* ???
- New functions

Origins of Independent Agencies

- *Interstate Commerce Commission* (1887)
  - Western farmers complained railroad monopolies were gouging them on shipping rates
  - Congress distrusted president Grover Cleveland to stand up to railroad pressure
  - Solution: expert, insulated rate-setting by a multimember commission
- *Federal Trade Commission* (1914)
  - Modeled on the ICC's independence
  - Progressive Era belief in expert, nonpartisan regulation

Independent Agencies

- *Humphrey's Executor v. United States* (1935)
  - FDR could not fire an FTC commissioner over policy disagreements
  - Congress can protect heads of multimember commissions (FTC, NLRB, SEC) from removal except "for cause"
  - Overruled by *Trump v. Slaughter* (2026): commissioners exercising "executive power" can be fired at will
  - Federal Reserve carved out in *Trump v. Cook* (2026)

Government Corporations

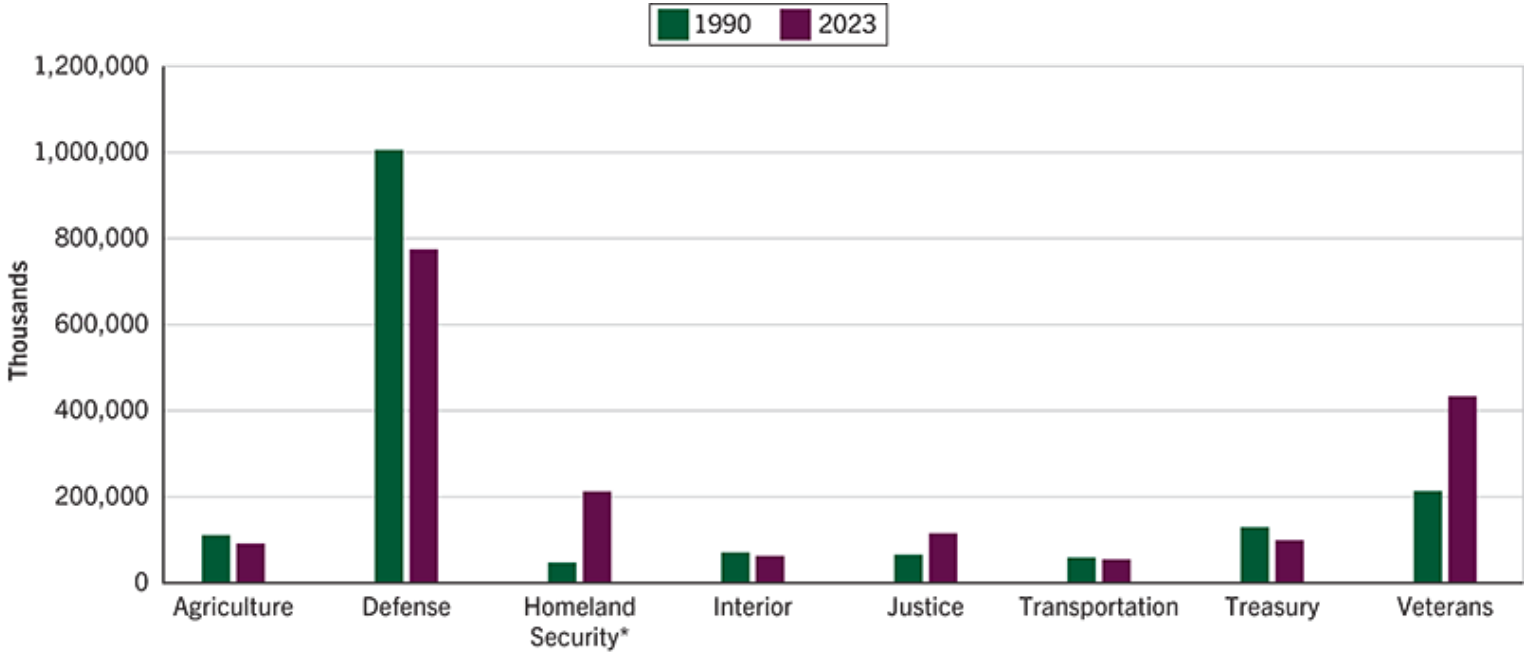
- e.g., USPS, FDIC, TVA
- *Business corporations established by the federal government*
- Receive no congressional appropriations

Civil Service

- The fall of political patronage practices led to the creation of the *Civil Service Reform Act of 1883*, establishing the Civil Service Commission, a centralized agency charged with hiring civil servants through a merit system
- Hiring practices and structured pay systems create an environment in which those most likely to succeed are in fact those who are ultimately appointed
- Preset examinations and civil service exams help determine required abilities and qualifications

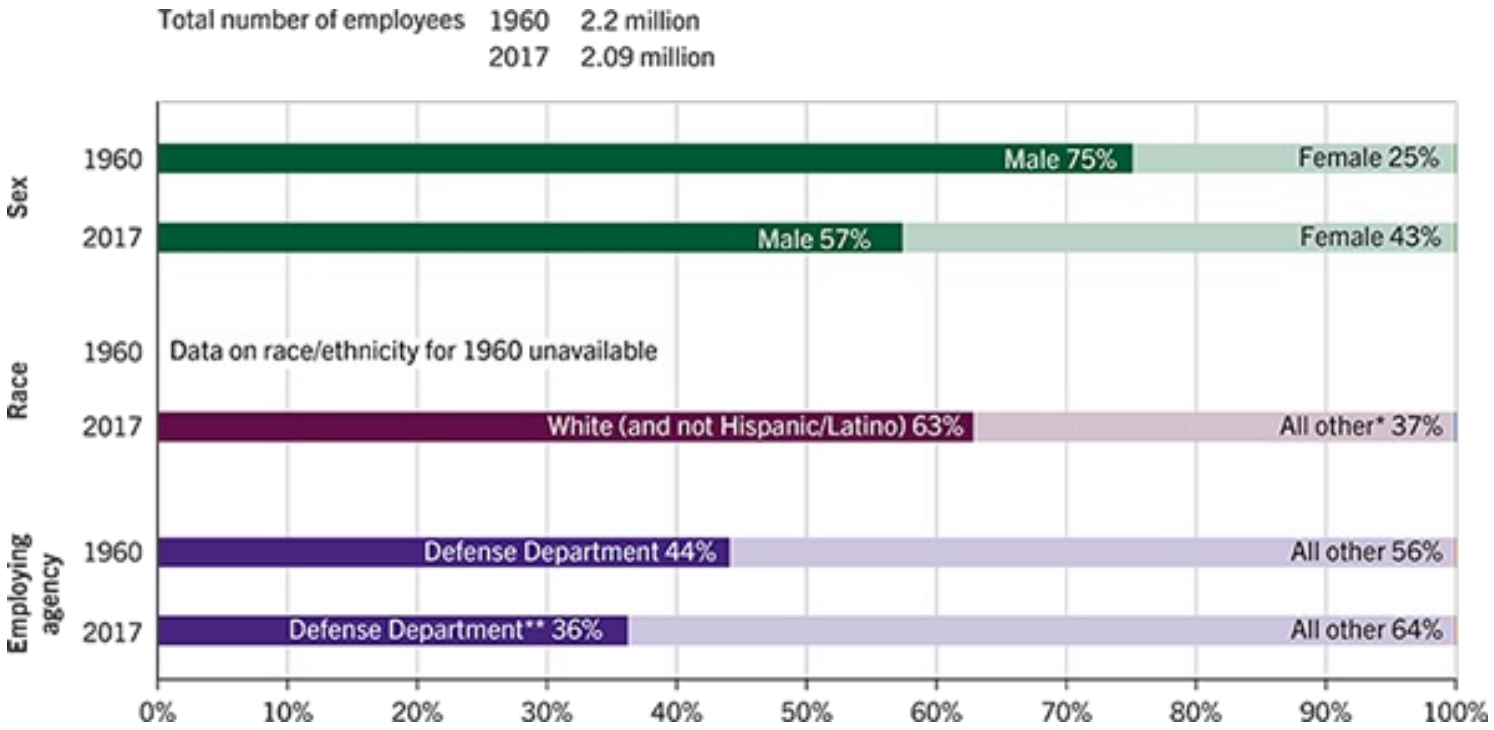
Civil Service

- Recruitment and Retention
  - Largely merit-based
  - The **buddy system**: many mid-to-upper-level positions filled via “name-request” jobs rather than open competition
- Firing
  - Termination of employees involves a process
  - **Senior Executive Service**: created in response to how difficult that process had become
- Makeup
  - Cross-spectrum of Americans in civil servant positions.



*Homeland Security previously referred to 22 different federal agencies, which became part of a single cabinet department in 2002.

Federal Civilian Employment, 1990–2023


Total number of employees 1960 2.2 million
2017 2.09 million
Sex
1960
Male 75%
Female 25%
2017
Male 57%
Female 43%
Race
1960
Data on race/ethnicity for 1960 unavailable
2017
White (and not Hispanic/Latino) 63%
All other* 37%
Employing agency
1960
Defense Department 44%
All other 56%
2017
Defense Department** 36%
All other 64%
0%
10%
20%
30%
40%
50%
60%
70%
80%
90%
100%

Characteristics of Federal Civilian Employees, 1960 and 2017

HISTORY OF THE FEDERAL BUREAUCRACY

Copying the Crown

The initial executive branch of government was similar to the administration of King George III

- **Perform essential national government functions**
- Department of State (1789)
- Department of War (1789)
- Department of Treasury (1789)
- Office of Attorney General (1789)



Historical Eras of Government Development

- Divided Power: 1789–1860
- State Activism: 1870–1936
- National Activism: 1936–1960
- National Standards: 1960–1980
- The End of Big Government: 1980–2024 (?)
- Trump 2.0 and the Unitary Executive: 2025-?
  - Reconstituting the Administrative State

Divided Power: 1789–1860

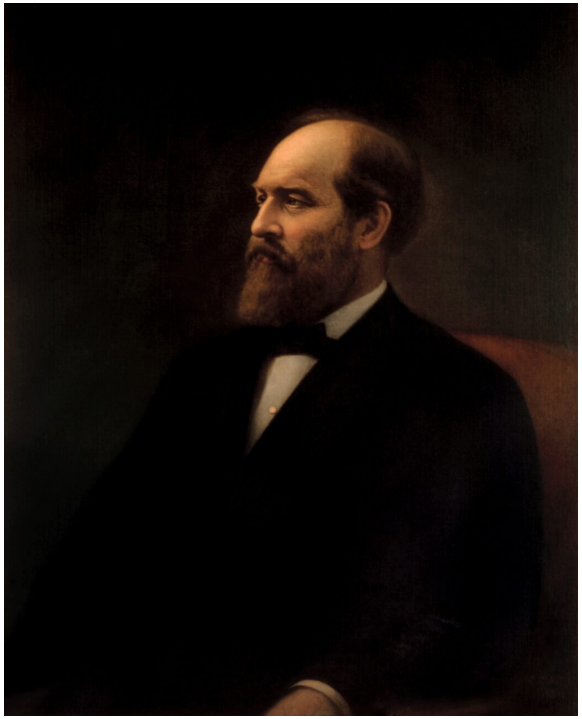
- ***Responsibility for many policy areas was with state government***
- The rise of centralized party politics in the 1820s, with many thousands of party loyalists, filled the ranks of bureaucratic offices around the country
- Most government agencies served the public but did not regulate

State Activism: 1870–1936

- ***Demands of the Industrial revolution***
- Industrialization in the late nineteenth century increased both the population and economic size of the United States, creating a need for more government programs to be staffed by *civil servants*
  - Interstate Commerce Commission (1887), the Federal Reserve Board (1913), the Federal Trade Commission (1914), Federal Power Commission (1920)
- Interstate Commerce Commission (ICC) created to *regulate* the economy

Assassination of James Garfield





National Activism: 1936–1960

- ***The great depression and demands for action***
  - "Alphabet agencies"
- National Industrial Recovery Act (1933)
  - Public works
  - *Shifted authority to the president*
- Federal Deposit Insurance Corporation (FDIC) (1933), Securities and Exchange Commission (SEC) (1934), Social Security Administration (1935), Agriculture and farm programs, Department of Health, Education, and Welfare (1953)

National Standards: 1960–1980

- ***The reinvigoration of national activism in the 1960s***
- Department of Housing and Urban Development (1965), Environmental Protection Agency (1970), Occupational Safety and Health Administration (1971), Department of Education (1979)
- The federal bureaucracy reflects the active role of the federal government

The End of “Big Government” 1980–2024

Which president said it?

> *Government cannot solve our problems, it can’t set our goals. It cannot define our vision. Government cannot eliminate poverty or provide a bountiful economy or reduce inflation or save our cities or cure illiteracy or provide energy. And government cannot mandate goodness*

Jimmy Carter



The End of “Big Government” 1980–2024

Which president said it?

We know big government does not have all the answers. We know there’s not program for every problem. We have worked to give the American people a smaller, less bureaucratic government in Washington. And we have to give the American people one that lives within its means. The era of big government is over

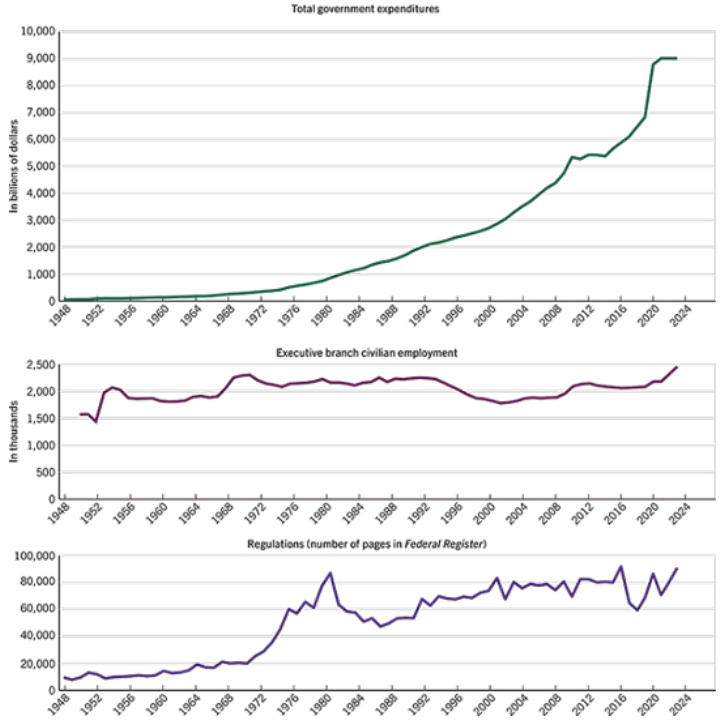
Bill Clinton



The End of “Big Government” 1980–2024

- ***Reform of the bureaucracy***
- Deregulation
- Privatization
  - *Government contracts* to private companies in order for them to provide necessary services
- Department of Government Efficiency (DOGE)

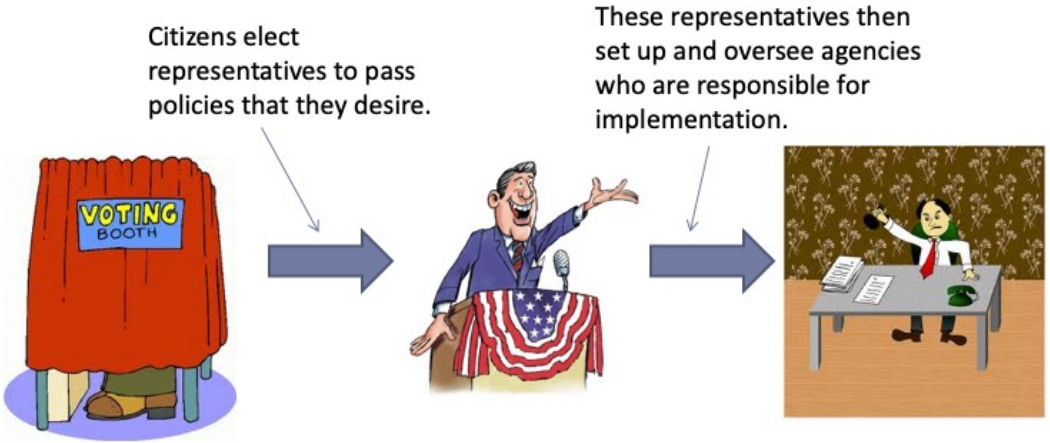
Big Government?



POLITICAL CONTROL

Democracy and Delegation

The people → Elected officials → Government Agencies



Democracy and Delegation

- Congress has delegated substantial authority to administrative agencies in three areas:
  - Paying subsidies to particular groups and organizations in society
  - Transferring money from the federal government to state and local governments
  - ***Devising and enforcing regulations*** for various sectors of society and the economy

Why Delegate?

- The bureaucracy has more expertise in these policy areas and more flexibility to make changes if necessary
- “Shift the responsibility” of decision-making to the agencies
  - Blame avoidance

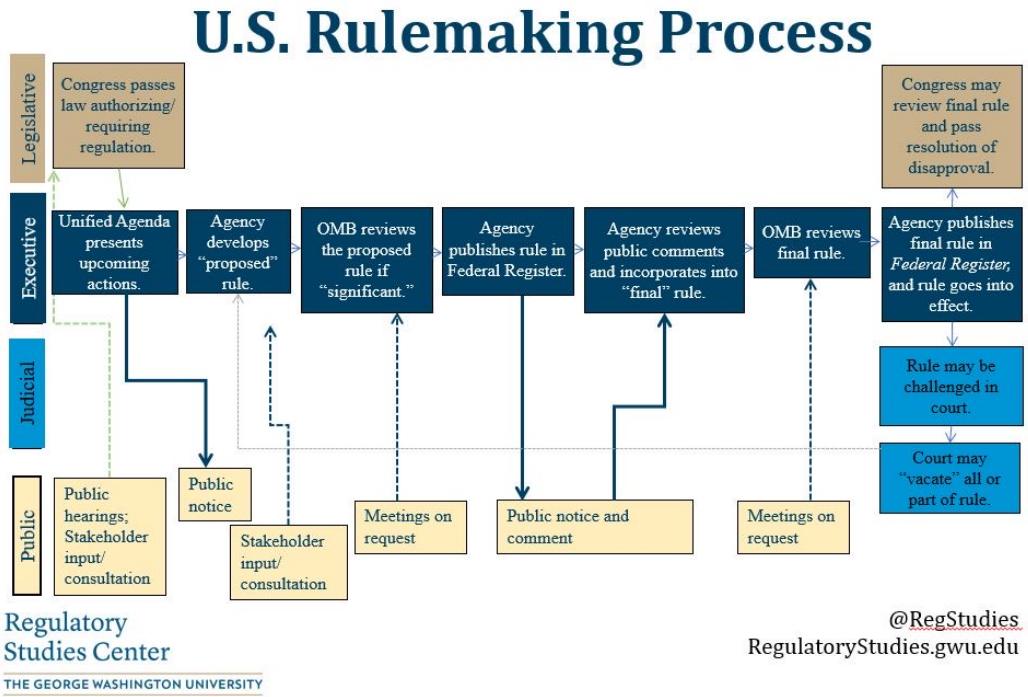
Agency Policymaking

- **Regulation**: *Specific standards or instructions concerning what individuals, businesses, and other organizations can or cannot do*
  - Most consequential form of executive branch policymaking
  - The *Take Care Clause*
- **Regulations are made through the *rulemaking* process**
- **Rulemaking**: *The agency process of translating congressional legislation into specific, actionable rules*
  - Rules must have statutory authority

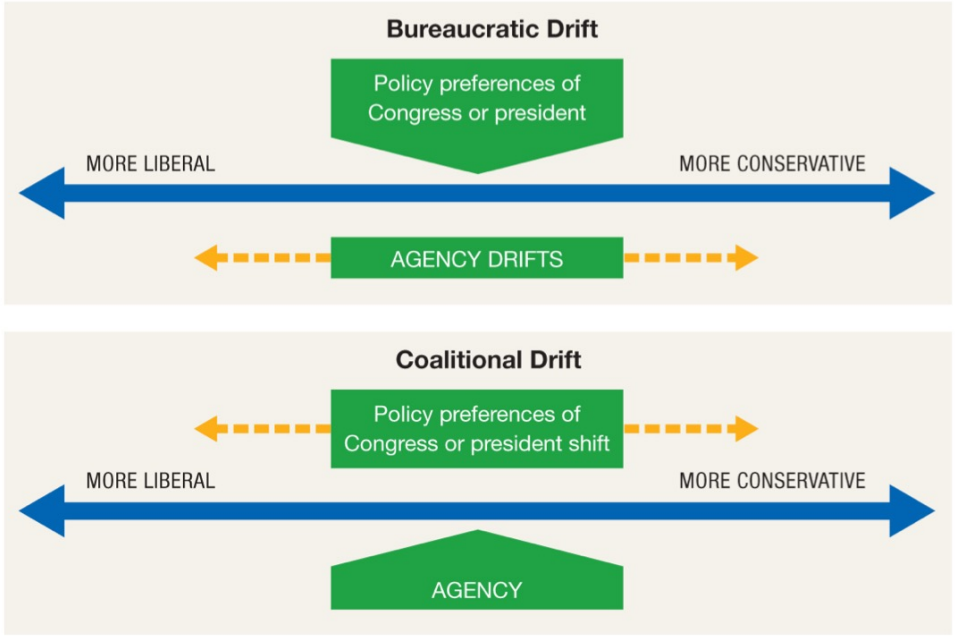
The Administrative Procedure Act (1946)

- **The agency can only act within the limits set by statute**
- The APA established the procedures an agency must follow to promulgate binding rules and regulations
- The agency must meet the following tests:
  - Be reasonable (sufficient factual support in the record)
  - Not be arbitrary or capricious
  - Not be an abuse of discretion
- Involves various stages and requires opportunities for public involvement

The Rulemaking Process



Drift and Divergent Policy Goals



Political Control

- **Political Control**:
  - External checks by political institutions
  - Elected officials use various oversight and control mechanisms to manage the bureaucracy
- Exercised by:
  - ***The legislature***
  - ***The executive***
  - ***The judiciary***
  - **Federalism**

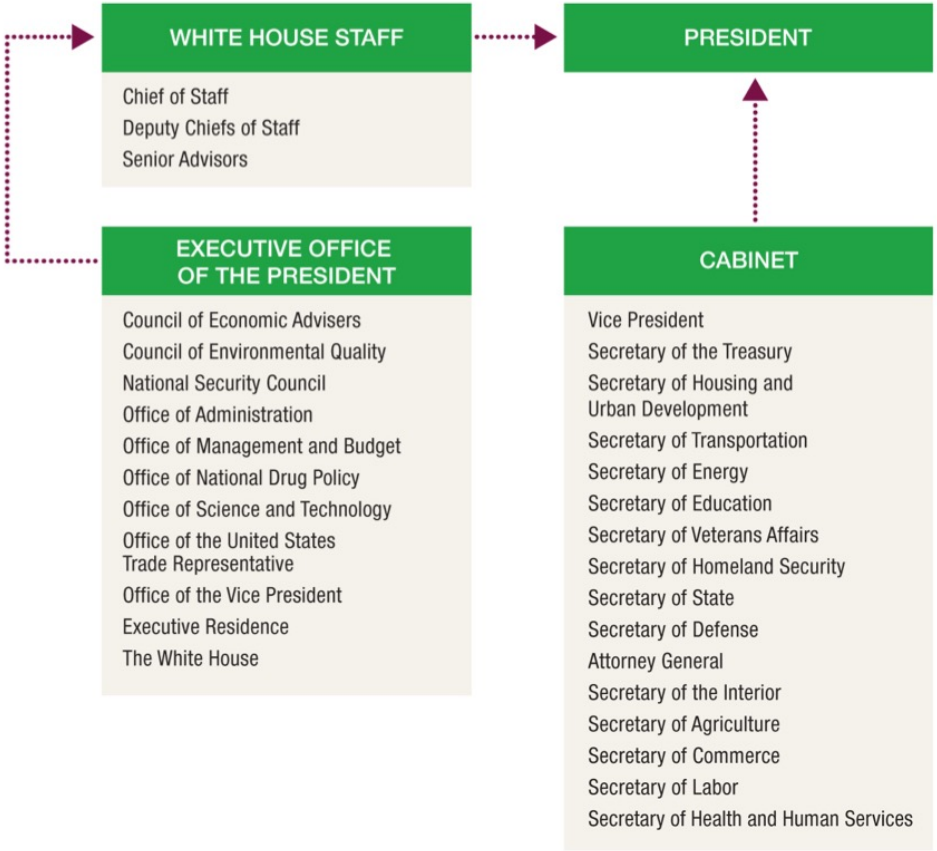
Political Control

Congress

- Authorization of agency
- Legislative language restricting discretion
- Budgetary control
- *Police patrol* oversight: Active monitoring
- *Fire alarm* oversight: React to complaints from citizens and/or interest groups

Political Control

President



Political Control

President

- Appointment of sympathetic agency heads
- Regulatory review prior to final rule enactment
- Executive orders
- Changes in budget authority
- Bureaucratic reorganization plans

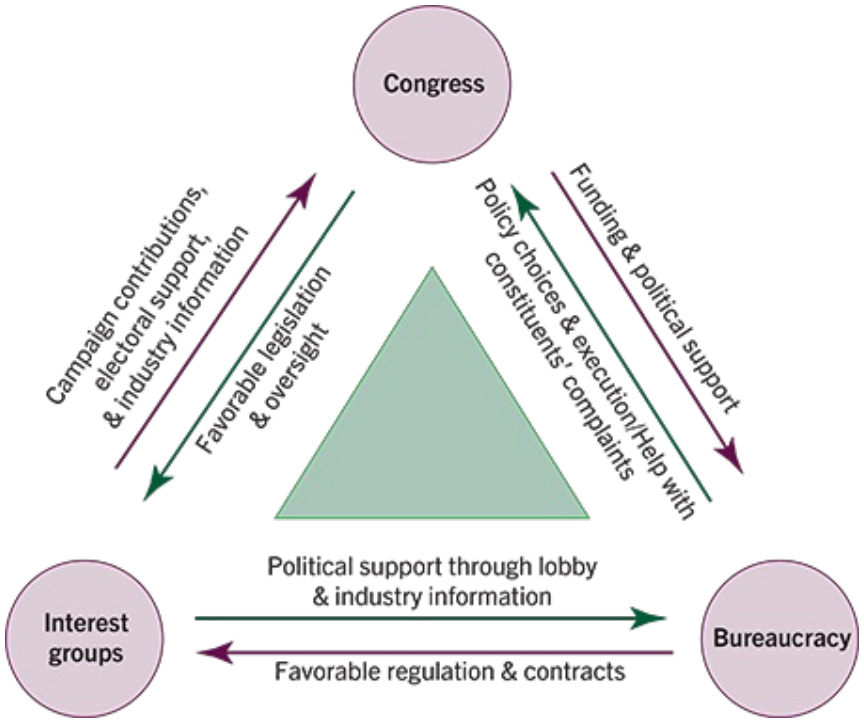
Political Control

Courts

- The courts review agency actions to determine if they meet constitutional or statutory requirements
  - Is the action consistent with legislative intent?
  - Were proper procedures followed?
- ***Deference***

Beyond Formal Checks: Informal Networks

- **Iron Triangle**: a stable, mutually reinforcing relationship among an agency, its congressional oversight committee, and the interest groups it regulates
- **Issue Network**: a looser, more contentious network of Washington-based interest groups, congressional staff, academics, think tanks, and mass media who discuss and advocate public policy
- Presidents often recruit agency officials directly from the relevant issue network


Congress
Campaign contributions, electoral support, & industry information
Favorable legislation & oversight
Policy choices & execution/Help with constituents' complaints
Funding & political support
Interest groups
Political support through lobby & industry information
Favorable regulation & contracts
Bureaucracy

Iron Triangle

The End of *Chevron* Deference

- Under *Chevron* (1984), courts deferred to a reasonable agency interpretation of an ambiguous statute — Congress was presumed to have implicitly delegated interpretive authority to the expert agency
- The **Major Questions Doctrine**: on questions of vast economic or political significance, courts should not defer to agency interpretations absent a clear congressional statement of authority
- In 2024, the Supreme Court overruled *Chevron* outright — eliminating agency deference across the board

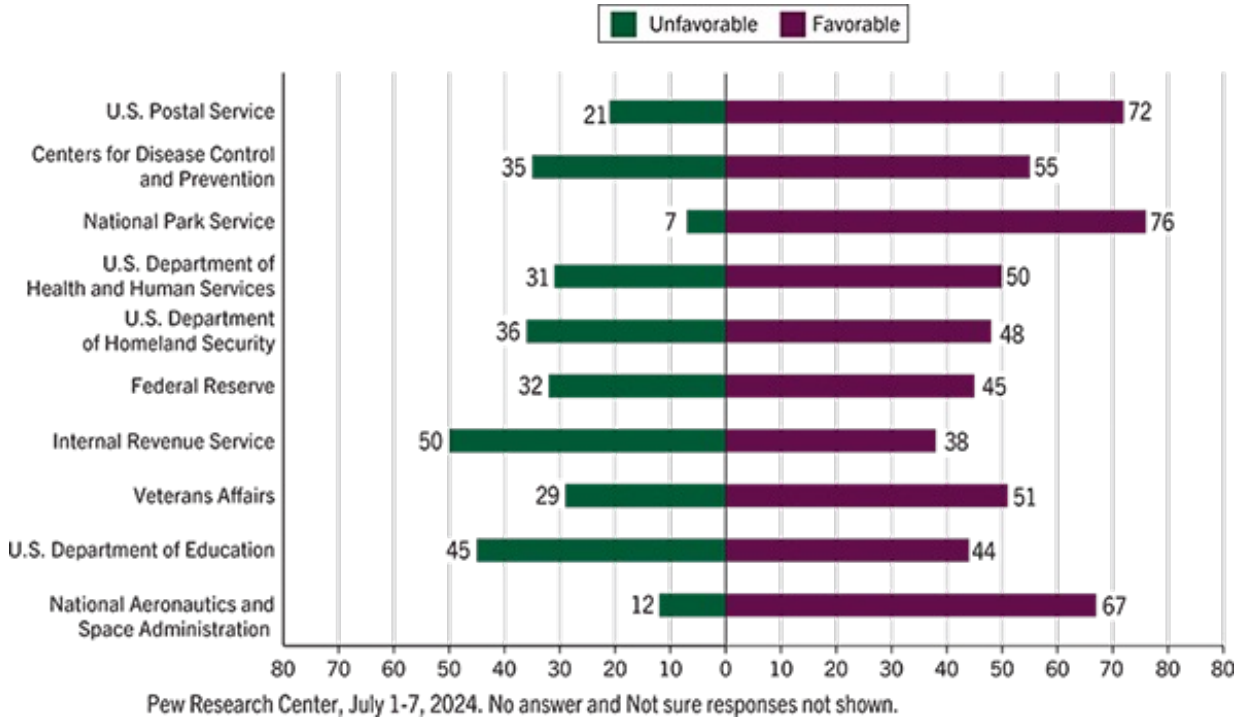
Has the Bureaucracy Gotten Too Powerful?

What empowers the bureaucracy?

- Knowledge and technical expertise
- Institutional knowledge
- Tenure of workers

What limits the bureaucracy?

- Strict limits on positions
- Constraints placed on agencies
- Congressional oversight



Pew Research Center, July 1-7, 2024. No answer and Not sure responses not shown.

How the Public Views Particular Federal Agencies

RECONSTITUTING THE ADMINISTRATIVE STATE

Schedule F and “New Patronage”

- **Schedule F**: reclassifies career civil servants in “policy-influencing” positions into the *excepted service*, removing at-will removal protections
- First created by executive order in 2020; revoked by Biden; reinstated by Trump on his first day back in office (2025)
- May be a **new patronage** — a 21st-century echo of Jacksonian patronage that prioritizes loyalty over merit and technical qualification
- Risks: incompetence, corruption, and a chilling effect on

Reconstituting the Administrative State

- Several 2020s Supreme Court decisions have reshaped the administrative state along two tracks
- **Reduced interpretive discretion**: the end of *Chevron* deference and the Major Questions Doctrine
- **Reduced structural independence**: *Trump v. Slaughter* (2026) overruled *Humphrey's Executor*, holding officials exercising "executive power" may be removed by the president at will — the **Unitary Executive Theory**